

Code of Discipline – for Philippine Employees

CODE OF DISCIPLINE

I. Purpose

Employees must uphold the highest ethics and act with integrity in all of our Company business actions. Furthermore, employee's performance and behavior are integral to the achievement of Company's business goals and objectives. As such, ethical behavior and compliance with the law are conditions of employment. Actions that violate the Code of Conduct, other company policies, and the law will result in appropriate disciplinary action, which can include employment termination.

As part of the disciplinary program of the company, the Code of Discipline is hereby created. This code must be given and explained to all employees at the start of their employment because they must first have knowledge of the rules before they can be held responsible.

II. Coverage

Any employee, regardless of role or level, can bring a specific concern to their supervisor, manager, Human Resources or any member of management.

An employee can file an incident report under the Code of Discipline regarding the behavior of another employee. Employees raising concerns, filing incident reports should do so only in good faith.

The Code complements and must be read in conjunction with employment contract and Company's other Human Resources policies, which include but is not limited to, Code of Conduct, Attendance Guidelines and Zero Tolerance Policy. All employees also have the responsibility to bring questionable matters to the attention of the company. Failure to report suspected violations of this Code may also result in disciplinary action.

III. Roles and Responsibility

The Company is a high-performance business and requires all employees to observe the Company's Code of Discipline and to conduct themselves at all times professionally in the performance of their role. Handling issues of misconduct, including the disciplining of employees, is the responsibility of leadership assisted by people supervisors and Human Resources, and includes the following responsibilities:

- Employees – behave in a manner consistent with Company's Core Values, understand process involved in reporting incidents that may breach the Code of Discipline, policies or procedures and implementing corrective actions to acts of misconduct.
- Supervisors/Managers – coach and guide employees on proper behavior, investigate and take timely action on reports of misconduct, handle the processing of less serious cases involving their direct reports and exercise good judgment in handling cases.
- Human Resources – provide guidance to people supervisors in the evaluation of incidents, application of the appropriate corrective action/sanctions, timely and consistent processing, resolution and documentation of disciplinary cases.

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IV. Classification of Offenses

The classification of offenses is not intended to be exhaustive or to cover every situation or behavior that may warrant disciplinary action.

Any conduct which the Company, in its absolute discretion, interprets as a violation of its policies, guidelines or processes or is otherwise unprofessional or inappropriate may be dealt with in accordance with these Guidelines. The Company reserves the right to investigate, conduct a hearing and impose sanction as warranted by the facts of each case.

The severity of the offense including impact, or potential impact on the Company, its employees, clients and visitors contribute to the determination of the appropriate misconduct level of the case.

V. Sanctions

The company reserves the right to impose progressive sanctions for multiple offenses committed by an employee under these Guidelines regardless of whether the categories of such offense are the same (e.g. the first offense is Performance of Duties and the second is Health, Safety and Security.)

The CODE OF DISCIPLINE is grouped into the following classification of offenses:

1. CLASSIFICATION OF OFFENSES

Group I	PROVISIONS ON ATTENDANCE
Group II	PROVISIONS ON PERFORMANCE OF DUTIES
Group III	PROVISIONS ON QUALITY
Group IV	PROVISIONS ON CONDUCT
Group V	PROVISIONS ON TECHNOLOGY, SAFETY, SECURITY, HEALTH AND ORDER

2. PRESCRIPTIVE OR CLEARING PERIOD FOR EACH CORRECTIVE ACTION

The prescriptive or clearing period for each corrective action is as follows:

Verbal Warning (VW)	Three (3) months
Written Warning (WW)	Six (6) months
Final Written Warning (FWW)	Twelve (12) months
Termination (T)	none

If an offense of the same nature is committed before the prescriptive or clearing period is over, an escalation to the next level corrective action will occur.

The term “cleansing period” means the interval of time an earlier offense is taken into account for purposes of determining the sanction for the subsequent act of misconduct. All records of disciplinary matters remain in the employee’s 201 file.

Notwithstanding the foregoing, the Human Resources reserve the right to consider the past misconduct to apply the totality rule to acts which show a clear pattern of misconduct.

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VI. Principles of Discipline Guidelines

- **Disclosure:**
When dealing with employee disciplinary matters, information relevant to any disciplinary investigation or subsequent action will be disclosed only when required for the purposes of conducting an investigation, hearing, the implementation of a sanction, the Company's Human Resources.
- **Preventive Suspension:**
If an employee's continued presence poses an imminent threat or risk to life, property, operations, or company interests, including but not limited to cases involving suspected fraud, dishonesty, or financial misconduct, as defined by law, the Company reserves the right to place the employee under preventive suspension.

Preventive suspension is not a disciplinary sanction, but a necessary interim measure adopted to safeguard the Company, its employees, clients, and assets while an investigation is ongoing. Such suspension shall not be imposed without the prior approval of the Human Resources Department.

Period of Suspension. The preventive suspension without pay shall be for a maximum of thirty (30) calendar days. Should the suspension extend beyond this period, the additional days will be taken as paid leave. If the employee is not found to have committed the alleged offense, the employee will be paid the amount of salary which was not paid during the preventive suspension period.

- **Liquidation of damages:**
Employees whose employment is terminated will be subject to liquidated damage amounting to 30 days of their basic rate as stipulated on their signed job Contract.
- **Company Prerogative:**
The Company reserves the right to exercise management prerogative in the interpretation, application and enforcement of the provisions stated in Code of Discipline and attendant policies, procedures and practices.

V. Revisions

This Code of Discipline may be withdrawn, replaced or amended at any time by the Company.

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OFFENSES AND THEIR CORRESPONDING CLASSIFIED PENALTIES

GROUP I Provisions on Attendance

Section	Offense	1st	2nd	3rd	4th
For Colleagues in Training					
	- Applicable for new hire and trainees - Attendance history during training will be carried over to production. In cases where absence(s) are incurred but are not yet terminable, document using the Coaching Log.				
1.1	Incurring tardiness of up to 15 minutes with valid excuse	FWW	T		
1.2	Incurring tardiness with prior notification or authorization from the trainer	FWW	T		
1.3	Incurring tardiness greater than 15 minutes without valid excuse	T			
1.4	Incurring one absence during the duration of the training, regardless of reason	T			
1.5	Being on a No Call No Show (NCNS) ¹ status or failure to inform the supervisor or manager in the manner provided in the Sick Hotline Policy of the inability to work at least two (2) hours before the start of the scheduled work day	T			
For Non-Agent/Support/Supervisors/Managers					
1.6	Late in informing immediate superior of the intended sick leave	VW	WW	FWW	T
1.7	Incurring at least 5 occurrences of tardiness or less than 60 minutes of accumulated tardiness within any given month	VW	WW	FWW	T
1/8	Being tardy for 60 to 180 minutes in a given month regardless of the number of occurrences	WW	FWW	T	
1.9	Being on a No Call No Show (NCNS) status or failure to inform the supervisor or manager in the manner provided in the Sick Hotline Policy of the inability to work at least two (2) hours before the start of the scheduled work day.	WW	FWW	T	
1.10	Not complying with a directive to render overtime work	WW	FWW	T	
1.11	Being tardy more than 180 minutes in a given month regardless of the number of occurrences	FWW	T		

¹ No-Call/No-Show

Employees who expect themselves to be absent from work on a given day are EXPECTED to inform their immediate supervisor at least 2 hours before their stated shift. Not reporting to work and not calling to report the absence is treated as an instance of NO-CALL/NO-SHOW [NCNS]. Although the definition of NCNS leaves very little room for subjective interpretation, Management may consider extenuating circumstances and maintains the right to exercise discretion in such cases.

After three consecutive instances of NO-CALL/NO-SHOW [NCNS], the employee is considered AWOL and a Return-to-Work-Notice (RTWN) is sent to the employee's stated mailing address.

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1.12	Malingering or pretending to be sick, giving false excuse to avail of a sick leave or absence	FWW	T		
1.13	Failure to report to a pre-approved overtime work and failure to notify immediate superior about one's absence during a scheduled overtime work.	FWW	T		
1.14	Abuse of allowed break periods or excessive meal breaks.	FWW	T		
1.15	Changing position or changing break schedule or day off schedule without the Superior's permission	FWW	T		
1.16	Three unauthorized absences within a six-month period	T			
1.17	Absence of three consecutive days without notice or authorization	T			
For Colleagues in Production					
1.18	Incurrence of Tardiness, i.e., inability to be at assigned workstation at expected time.	VW	WW	FWW	T
1.19	Failure to notify or not calling the sick hotline two (2) hours before start of scheduled shift of intended sick leave	VW	WW	FWW	T
1.20	Incurring at least two (2) recorded tardiness totaling less than 60 minutes or one (1) instance more than 60 minutes in a given month	VW	WW	FWW	T
1.21	Logging off within or after the first four hours of the shift without notice or authorization	VW	WW	FWW	T
1.22	Incurring one (1) unauthorized absence due to reasons other than being sick and/or being unable to present a valid medical certificate from an HMO-accredited doctor within 24 hours upon return to work. A valid medical certificate should contain the following details needed for verification purposes: doctor's name and signature, PRC license number, clinic address and phone number	VW	WW	FWW	T
1.23	Failure to properly use appropriate AUX mode.	VW	WW	FWW	T
1.24	Incurring at least three (3) recorded tardiness totaling less than 60 minutes or two (2) instances more than 60 minutes in a given month	WW	FWW	T	
1.25	Incurring at least one (1) tardiness notice within sixty (60) days from issuance of a First Written Warning for violation of the Attendance guideline	WW	FWW	T	
1.26	Incurring one (1) unauthorized absence within sixty (60) days from issuance of a First Written Warning for violation of the Attendance guideline	WW	FWW	T	

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1.27	Being on a No Call No Show (NCNS) status or failure to inform the team lead or manager in the manner provided in the notification policy of the inability to work at least two (2) hours before the start of the scheduled work day	WW	FWW	T	
1.28	Patterned Absence/s	WW	FWW	T	
1.29	Incurring at least one (1) tardiness notice within sixty (60) days from issuance of a Second Written Warning for violation of the Attendance guideline	FWW	T		
1.30	Incurring one (1) unauthorized absence within sixty (60) days from issuance of a Second Written Warning for violation of the Attendance guideline	FWW	T		
1.31	Absence during a Critical Work Day such as a day before or after rest days, plotted vacation leaves, paydays and holidays whether on No Call No Show or an unauthorized absence	FWW	T		
1.32	Incurring two consecutive sick calls but no valid medical certificate was presented to support the absence	FWW	T		
1.33	Incurring one (1) No Call No Show within sixty (60) days from issuance of a Second Written Warning for violation of the Attendance guideline	FWW	T		
1.34	Incurring 2 days consecutive NCNS for the first instance	FWW	T		
1.35	Incurring at least one (1) tardiness notice within sixty (60) days from issuance of a Final Written Warning for violation of the Attendance guideline	T			
1.36	Incurring one (1) unauthorized absence within sixty (60) days from issuance of a Final Written Warning for violation of the Attendance guideline	T			
1.37	Absence of three consecutive days without notice or authorization	T			
1.38	Abandonment, continued failure to report for work without complying with the notice and sick hotline policies of the Company, or failure to return to work after issuance of a return to work order within the period provided in the notice	T			
1.39	Incurring 3 days consecutive NCNS for the first instance	T			
1.40	Incurring one (1) NCNS within sixty (60) days from issuance of a Final Written Warning for violation of the Attendance Guideline	T			

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GROUP II PROVISIONS ON PERFORMANCE OF DUTIES

Section	Offense	1st	2nd	3rd	4th
2.1	Wasting time in any way during official work hours such as extending break time, idle chatting, or any form of simple malingering	VW	WW	FWW	T
2.2	Using the Company's time, materials or equipment to do unauthorized work	VW	WW	FWW	T
2.3	Changing position, hours, or days off without the team lead's permission	VW	WW	FWW	T
2.4	Committing other acts or omissions similar or analogous to any of the above enumerations which are not embraced by the foregoing provisions regardless of whether such acts cause actual damage and/or loss to the interest of the Company	VW	WW	FWW	T
2.5	Rendering overtime without any proper authorization and/or approval.	VW	WW	FWW	T
2.6	Failure to meet performance targets of the Company. Enrollment to PIP	WW	FWW	T	
2.7	Refusal or failure to report for or to render overtime work after being required to do so in accordance with business exigencies declared at the time of the requirement	WW	FWW	T	
2.8	Sleeping at the work station or Operations area while on duty or in a place other than the room or area designated for rest or sleeping	WW	FWW	T	
2.9	Logging off or quitting work hours before your scheduled time off, or going on unauthorized undertime	WW	FWW	T	
2.10	Loafing or loitering on Company time (such as but not limited to extending beyond break period/ beyond the allotted time, sleeping, browsing internet in the break room, and other similar acts are considered a violation of this rule)	WW	FWW	T	
2.11	Failure to submit a project on the specified deadline	WW	FWW	T	
2.12	Delays in reporting/processing/submitting mandatory reports	WW	FWW	T	
2.13	Committing other acts or omissions similar or analogous to any of the above enumerations which are not embraced by the foregoing provisions regardless of whether such acts cause actual damage and/or loss to the interest of the Company	WW	FWW	T	
2.14	Abandoning work while logged IN or attempting to be paid while not at work. This also includes logging in to the timekeeper and leaving work area without permission	FWW	T		

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2.15	Leaving the work assignment during official working hours without prior permission from team lead or department head	FWW	T		
2.16	Delegating assigned duties to others for personal gain	FWW	T		
2.17	Deviation from normal duties and responsibilities, systems, procedures, standards or flow of operations without authorization from the immediate supervisor or his representative	FWW	T		
2.18	Unauthorized use of the Internet, chat accounts, or other software programs without prior notice and consent of authorized Company representatives	FWW	T		
2.19	Refusal or failure to comply with a lawful and reasonable reassignment or transfer	FWW	T		
2.20	Failure to meet client required targets	FWW	T		
2.21	Misplacing or Losing important Company records, electronic files and other documents.	FWW	T		
2.22	Concealing poor, erroneous and substandard work from the Management to avoid being penalized	FWW	T		
2.23	Failure or refusal to carry out verbal or written job order or assignment	FWW	T		
2.24	Failure or refusal to follow a prescribed system or process work flow	FWW	T		
2.25	Committing other acts or omissions similar or analogous to any of the above enumerations which are not embraced by the foregoing provisions regardless of whether such acts cause actual damage and/or loss to the interest of the Company	FWW	T		
2.26	Abandonment of post	T			
2.27	Leaving building premises while on duty without authorization from immediate superior.	T			
2.28	Engaging in sabotage (e.g. restricting output, slowdown of work, damaging or tendering vehicles, machines and/or equipment immobile or non-operational) Willful, deliberate, intentional destruction of any company resources which adversely affect the operations of the Company such as, but not limited to, spreading/installing computer viruses, Sniffers, and other related malicious software that can disrupt operations; tampering with technical devices; overstating/understating of financial records; divulging or leaking of valuable/ confidential information, documents and the	T			

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	like; intentionally detaching mechanical safety devices; infiltration or manipulation of restricted access network equipment and devices; installation of illegal network connections; and other similar acts.				
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GROUP III PROVISIONS ON QUALITY

- For the specific provisions on Quality adherence, please refer to your respective Program's QA Manual.

Section	Offense	1st	2nd	3rd	4th
General Provisions on QA Adherence (Zero Tolerance)					
3.1	Dropping calls without justifiable reason/s; any form of call avoidance / call abandonment	T			
3.2	Staying silent on the other end of the line without justifiable reasons until the customer drops the call.	T			
3.3	Behaving with disrespect, discourtesy, or improper conduct toward clients, subscribers, or other persons transacting business with the Company, or exhibiting any of the above behaviors in dealing with other employees in person or through telephone or email Customer Abuse. This is defined as discourtesy toward any customer in any form or aspect including, but not limited to, rudeness, arrogance, insolence, impoliteness, disdain, contentiousness, ungraciousness, incivility, or inconsiderateness in word or in action.	T			
3.4	Neglect of Customer. Willful disregard of the needs of the customer; refusal or failure to assist the customer; ignoring the presence of customer; causing inconvenience to the customer; performing non-work related tasks or engaging in non-work related chatting or conversation resulting to inconvenience in or neglect of a waiting customer; causing unnecessary delays in responding to customer needs or requests or otherwise refusing or failure, without justifiable cause, to provide prompt, efficient, and courteous service to a customer.	T			
3.5	Mishandling of Customer. It refers to a culpable, unjustified and avoidable errors (whether deliberate or through negligence) in servicing a customer especially if such errors results in customer dissatisfaction and client escalation.	T			

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3.6	Cross-talking while engaged in a call; uttering unnecessary remarks/sounds to caller/customer	T			
3.7	Connectivity (Active Listening Skills) – talks over customer, not using proper phone etiquette, not acknowledging comments from the customer, not assisting customer concerns (e.g. engaging in personal talks with customer, conversing in a local language/dialect are considered a violation of this rule.)	T			
3.8	Uttering vulgar, obscene, or offensive words or being discourteous in attending or handling calls	T			
3.9	Commission of call avoidance or acts that are not in accordance with instructions or training received for the proper handling of calls connected or handled, including but not limited to improperly or abruptly releasing calls, cold transfers, jumping queue, putting a call on hold for a long time or without valid reason, refusal to attend to or answer calls, and other similar or analogous acts. Any of the incidents below fall under the offense of Call Avoidance: (a) refreshing hold or avail time; (b) jumping aux; (c) excessive hold time and excessive ACW without justifiable reason; (d) inappropriately transferring calls or performing blind transfers; this includes calls which are unnecessarily transferred back to the queue; (e) leaving the post while logged-in or engaged in a call; (f) sleeping while logged in resulting to unserved call/s; (g) any other type of system manipulation or incident that maybe construed as call avoidance	T			
3.10	Any form of system/tools manipulation which may directly or indirectly affect calls/call queues.	T			
3.11	Misrepresentation, misleading, giving false or inaccurate information, giving false name, inclusion of unwanted add-ons or the like	T			
3.12	Commission of fraud or similar activities in attending to calls, including but not limited to unauthorized recording of personal information of customers, accessing client accounts, or other acts that either cause undue benefit on the part of the person handling the call or	T			

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	prejudice to the client, or any act that would compromise client account details				
3.13	Committing other acts or omissions similar or analogous to any of the above enumerations which are not embraced by the foregoing provisions regardless of whether such acts cause actual damage and/or loss to the interest of the Company	T			

GROUP IV PROVISIONS ON CONDUCT, INTEGRITY and OFFICE DECORUM

Section	Offense	1st	2nd	3rd	4th
4.1	Unauthorized posting or removal of articles or material from Company bulletin boards or other Company assigned posting areas	VW	WW	FWW	T
4.2	Engaging in horseplay, running, scuffling, or throwing things within Company premises	VW	WW	FWW	T
4.3	Violation of the Language Policy	VW	WW	FWW	T
4.4	Committing other acts or omissions similar or analogous to any of the above enumerations which are not embraced by the foregoing provisions regardless of whether such acts cause actual damage and/or loss to the interest of the Company	VW	WW	FWW	T
4.5	Failure to provide, in a timely manner and without justifiable reasons, the supporting documents necessary to validate request for sick, vacation leave, prolonged leave of absence or bereavement leave upon return to work e.g. police report, medical certificate etc.	VW	WW	FWW	T
4.6	Sharing of confidential information related to Payroll or Compensation to co-employees or unauthorized individuals other than those in authority to discuss such information.	VW	WW	FWW	T
4.7	Failure to issue Memorandum. It refers to supervisor's and up failure to report, document or issue a memorandum to a direct report for violating company rules and regulations with the attempt of covering-up or protecting erring personnel.	VW	WW	FWW	T
4.8	Unauthorized raffling, vending, soliciting, or collecting contributions for any purpose whatsoever at any time within Company premises or unauthorized use the Company's name in making such raffle, sale, solicitation, and/or contribution and all other analogous activities within or without Company premises	WW	FWW	T	
4.9	Selling personal items, various goods, and the like at any time within the Company premises	WW	FWW	T	

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4.10	Committing other acts or omissions similar or analogous to any of the above enumerations which are not embraced by the foregoing provisions regardless of whether such acts cause actual damage and/or loss to the interest of the Company	WW	FWW	T	
4.11	Using company resources for personal gain (including but not limited to: Using office address/telephone numbers/computers for personal bills, mails, and the like)	WW	FWW	T	
4.12	Malingering or pretending to be sick, giving false excuse to avail of a sick leave or absence	FWW	T		
4.13	Concealing or deliberately misplacing any Company-issued or Company-owned property	FWW	T		
4.14	Taking part in betting or any form of gambling, lottery or any game including online games of chance within Company premises	FWW	T		
4.15	Negotiating, entering into, executing, or implementing transactions or contracts in violation of procurement or signature policies of the Company regardless of whether such act causes any material, fiscal, financial, or monetary injury, loss, or damage to the Company	FWW	T		
4.16	Unauthorized possession of or access to any confidential information or document maintained by the Company which employee may have deliberately or inadvertently secured or gained possession of	FWW	T		
4.17	Failure to observe proper office decorum within Company premises and/or during Company time and/or while at official Company functions, whether within or outside Company premises.	FWW	T		
4.18	Forming, operating or attempting to operate within the Company any credit union, loan association, or any other similar organization	FWW	T		
4.19	Failure to follow company policies and procedures (e.g. non-compliance to pre-employment requirements, non-compliance, failure to follow specific orders from Management and/or Immediate Supervisor is considered a violation of this rule).	FWW	T		
4.20	Negligence in the performance of duties as discussed by immediate superior	FWW	T		
4.21	Initiating and/or participating in disorderly conduct, whether consummated or attempted, including but not limited to shouting, cursing, or any violent act, whether done alone or in concert with others, regardless of whether such acts result in disturbances during working	FWW	T		

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	hours or within Company premises that impede, disturb, or disrupt any operation or Company-sponsored activity				
4.22	Gambling or engaging in a lottery or other related or similar activities within Company premises	FWW	T		
4.23	Refusal or failure to comply with a lawful and reasonable reassignment or transfer	FWW	T		
4.24	Engaging in usurious practices or money-lending activities within Company premises	FWW	T		
4.25	Negligence or failure to abide by lawful, reasonable, and specific instructions, orders, directives, or established procedures, or failure to exercise reasonable care in complying therewith, regardless of whether such negligence or failure results in actual loss or damage to any Company property	FWW	T		
4.26	Use of Company phone for unofficial business. This includes Company and/or client issued phones and handsets	FWW	T		
4.27	Using cellular phone and other restricted electronic devices/gadgets within the specified restricted areas	FWW	T		
4.28	Committing other acts or omissions similar or analogous to any of the above enumerations which are not embraced by the foregoing provisions regardless of whether such acts cause actual damage and/or loss to the interest of the Company	FWW	T		
4.29	Intrigue. It refers to any employee who engages in rumor mongering and/or deliberately spreading intrigue, misleading or incomplete information about an employee, with the intent or aim of or which results in damaging, tarnishing or besmirching his/her reputation or standing within the Company, or weakening or destroying the trust and confidence of others to him/her, or undermining or destroying his/her authority.	FWW	T		
4.30	Injuring the company's reputation. Deliberately damaging or injuring the reputation and image of the Company in the eyes of the general public, including but not limited to, spreading false rumors about the company, embarrassing, ridiculing, insulting, or mocking the company by word or action.	T			
4.31	Conflict of Interest. Employees, during the period of employment, shall not engage with other employers or involve in any activity which is prejudicial to the interest of the company or which will interfere with the performance of their jobs, whether within or	T			

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	outside their working hours, without prior written consent of the company. It is the Management who will determine whether or not such work or activity will be prejudicial to the interest of the Company. This shall deemed to exist where, in general, an employee has or acquires financial or other interest personal in nature in any business or enterprise or transaction in which s/he may be called upon to act (for example, to approve, recommend action, make a study, or make findings of fact) in a manner detrimental to the interest of the company by reason of his/her personal involvement of the employee him/herself but may also arise directly or indirectly as a result of the employee's family or close personal relationship.				
4.32	Making false statements in employment applications or personal records, either when applying or during the course thereof	T			
4.33	Engaging in fictitious transactions, theft, fake invoicing, padding and other sales malpractices	T			
4.34	Misappropriation, extorting, embezzlement of Company funds or property or using company funds/name for personal gain. Misuse of Company funds. This refers to an employee who, by reason of the duties of his/her position, is held accountable for or is entrusted with the custody, control or handling of company funds appropriates, divests, or uses the said funds or property for his/her own benefit or the benefit of the third party without the approval of the Company.	T			
4.35	Corruption/Extortion/Bribery (a) Any employee who directly, or indirectly demands, requests, solicits, receives or accepts any consideration, share, percentage or commission for him/herself or for another person in connection with any contract or transaction entered into by the company. b) Any employee who directly or indirectly requests or receives any consideration, share, percentage, or commission for him/herself or for another person in connection with the performance of his/her duties.	T			
4.36	Submission of fraudulent expense statements	T			
4.37	Obtaining or releasing company money, property, or documents fraudulently, either in person or collusion with others	T			

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4.38	Fraud or willful breach by the employee of the trust/confidence reposed in him by the Company or its duly authorized representative where continuance in service is patently inimical to the company's interest.	T			
4.39	Giving away restricted or classified Company information, forms, documents and/or any other confidential papers without authorization and/or clearance from Management to any outside or to those not authorized to possess such materials	T			
4.40	Divulging of confidential information that may lead directly or indirectly to the disadvantage of the Company	T			
4.41	Unauthorized possession, access or disclosure of confidential information or reproduction or distribution of confidential documents or information without proper authorization or permission to another person, whether or not an employee of the Company, its client, or other persons or any other types of breach or violation of the company's Confidentiality/Non-disclosure agreement	T			
4.42	Planning, participating, or aiding any act that directly defrauds or tends to defraud the Company or its clients, regardless of whether material, fiscal, financial, or monetary injury, loss, or damage results from such actions	T			
4.43	Any act of dishonesty, which give unlawful gain to the offender to the prejudice of the company, its duly authorized representatives or his co-worker	T			
4.44	Perjury or knowingly giving untruthful statements or concealing facts or evidence in an inquiry or investigation conducted by authorized representatives of the Company or in any application submitted to the Company, or committing any act that directly delays or obstructs such investigation	T			
4.45	Failure to cooperate in company investigations of cases (administrative, civil or criminal) when testimony is required and where Company is a party	T			
4.46	Misrepresentation of company in official function resulting in prejudice to company interest	T			
4.47	Damaging or jeopardizing Company interests through acts or omissions affecting clients, visitors, customers, or other business partners of the Company	T			

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4.48	Tampering attendance records or falsification of or irregularities in the accomplishment or keeping of time record	T			
4.49	Tampering medical certificate/s or any other document for the purpose of applying payment/s for leave; this also includes presentation of tampered or fraudulent documentation for unexcused leave of absence.	T			
4.50	Timing in or logging in for another employee or conspiring with or arranging for another to do the same	T			
4.51	Falsifying Company records or knowingly using falsified records or documents	T			
4.52	Submitting false or fraudulent money claims against the Company or submission of forged certification or documents, regardless of whether or not it results in loss of revenue or damage to Company image or affects service obligation to the public	T			
4.53	Submission of false reports, false information, or false certification, regardless of whether it results in loss of revenue or damage to Company image or affects service obligation to the public	T			
4.54	Submission of false documents or false statement, or willful misrepresentation or concealment of disqualification, to secure employment or promotion in the Company	T			
4.55	Making use of records or documents known by the user to be false in whole or in part	T			
4.56	Forging, falsifying, or altering an official document in a manner that changes the form or meaning of its contents without proper authority or tends to mislead the person to whom it is addressed or any person who shall use the same	T			
4.57	Offering or accepting anything of value in exchange for a job, work location, or favorable condition of employment or work	T			
4.58	Involving oneself directly or indirectly in any transaction, business undertaking or enterprise where such engagement, participation or involvement involves conflict of interest	T			
4.59	Accepting or performing employment or work with another employer or for the benefit of other persons or engaging in the practice of a profession without prior authorization from the Company that prevents the employee from effectively discharging one's duties and responsibilities.	T			

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4.60	Engaging in any activity that directly competes with the business of the Company or any part of its operation, or tends to disrupt, impede, obstruct, or delay the conduct of any business, function, or activity of the Company	T			
4.61	Soliciting or receiving money or anything of value, share percentage, benefits or favor from Company supplier or from any person, personally or through another for personal purposes without prior specific authorization	T			
4.62	Soliciting money, gifts, benefits, favors, or anything of value or promise from any person, or through the mediation of another, as a condition for the performance or nonperformance of one's duty, whether or not such solicitation was consummated	T			
4.63	Obtaining Company materials, pay envelopes, or entering premises or job sites on fraudulent orders/papers or through misrepresentation. This includes collusion with other persons to achieve the above ends	T			
4.64	For employees considered as 'officers' of the Company, borrowing money from subordinates or allowing the same, particularly to act as co-makers or guarantors of offer's loan and the like.	T			
4.65	Collaborating, conspiring, helping, or providing any information, means, or assistance that directly aids or abets another to defraud the Company, attempted or consummated, regardless of whether such acts cause fiscal, financial, monetary, or material damage to the Company	T			
4.66	Cheating, cooperating in cheating, or facilitating cheating during examinations, or other acts that fraudulently or directly manipulate examinations or performance management tools and processes or their results	T			
4.67	Unprovoked insolence or disrespect towards the Company or its customers or acquaintances of the Company	T			
4.68	Making vicious or malicious statements against the Company or its products and services, its employees and/or officials	T			
4.69	Posting, circulating, writing or painting subversive materials or libelous, derogatory or offensive comments/statements/remarks against any employee whether inside or outside Company premises. This also includes use of Social Media in spreading derogatory, offensive or insulting	T			

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	comments/statements/remarks against a co-employee and/or the company in general				
4.70	Uttering words or performing acts that discriminate against or harass a fellow employee by reason of his race, nationality, ethnicity, religion, age, disability, gender, or sexual orientation	T			
4.71	Uttering words, committing acts, or making gestures that are manifestly insulting or grossly disrespectful to any employee	T			
4.72	Instigating, provoking, or participating in any act whether alone or in concert with others that tends to create panic, disturbance, or fear to others, such as making bomb jokes or threats	T			
4.73	Threatening, intimidating, or coercing an officer, manager, team lead, or any person acting for or on behalf of the Company	T			
4.74	Provoking or participating in a fight with another employee or person or aiding participants therein within the premises of the Company. Fighting. It refers to any employee who engages in a fight among fellow employees during working hours or within company premises.	T			
4.75	Insubordination or refusal to follow verbal or written reasonable orders or instructions of a superior in connection with work, company policies, rules, SOP or work schedules including mandatory overtime.	T			
4.76	Committing other acts of insubordination, neglect of duty, or other similar or analogous acts not embraced by any of the foregoing provisions	T			
4.77	Drinking/Taking alcoholic or intoxicating beverages or prohibited drugs within Company premises or during work schedules	T			
4.78	Entering company premises under the influence of liquor or prohibited drugs, including possession thereof, within company premises. Random drug check is also included.	T			
4.79	Bringing or attempting to bring onto Company premises unauthorized alcoholic beverage(s)	T			
4.80	Use, possession, selling, and/or assistance in the distribution of prohibited drugs, derivatives, and other items considered illegal under the law.	T			
4.81	Unauthorized use of addictive or habit-forming drug not prescribed by a medical practitioner	T			

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	at any time within the Company premises or property				
4.82	Engaging in scandalous or indecent acts within or outside Company premises while on duty	T			
4.83	Immoral conduct within Company premises, regardless whether or not committed during working time, including but not limited to exhibition or distribution of pornographic materials	T			
4.84	Public imputation of vice or defect, real or imaginary or any act tending to cause dishonor to co-employee's work or Company's product.	T			
4.85	Directly incriminating or imputing to an innocent employee the infraction of Company rules/ regulations or the commission of a crime.	T			
4.86	Inducing a co-employee to commit an infraction of Company rules/ regulations	T			
4.87	Inciting or participating in any work stoppage, slow down, mass leave, sit down, riot, or other similar disruptive activities	T			
4.88	Conduct of grossly indecent nature or using profane or defamatory language in addressing another person during working hours or within the Company premises depending on the gravity of the offense.	T			
4.89	Gross/reckless negligence in the performance of assigned duties It refers to any employee who recklessly perform assigned duties, gross negligently or has willfully disregarded proper procedures which resulted in the loss or wastage of or damage to company property, material parts, machinery, equipment, tools, records, and other company properties in an amount exceeding Php20,000.	T			
4.90	Theft of Company property or that of a co-employee	T			
4.91	Misappropriating, misusing, embezzling, or applying Company funds for a purpose other than that for which the Company funds were released and authorized to be used, or the failure to liquidate or account for the use of funds entrusted to or under one's custody	T			
4.92	Unauthorized possession, selling, or disposing of Company property or failure or refusal to return any Company property	T			
4.93	Commission of a crime against the Company or any of its duly authorized representatives	T			
4.94	Conviction of a crime involving moral turpitude	T			

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4.95	Physical assault upon one's superior. Violence. It refers to any employee who uses force, violence or other unlawful, improper or irregular physical means on other employees for any reason whatsoever regardless of whether it resulted to harm to whom such force or violence was directed to except in the event of self-defense.	T			
4.96	Abuse of Authority, coercion, maltreatment of any retaliatory act against a subordinate	T			
4.97	Using without proper authority any office equipment, or other Company property for personal purposes	T			
4.98	Provided further that commission of two (2) or more such violations within a period of one (1) year will escalate the second and subsequent violations to the next higher penalty	T			
4.99	Failure to implement or follow proper procedures for performance management of employees, for conduct of investigation, or for disciplining of employees, including but not limited to imposing penalties or fines not authorized or levied under relevant policies and regulations; or commission of any act that violates or tends to impede the proper implementation of human capital or resource policies, procedures, and regulations, regardless of whether such acts lead to actual losses to the Company	T			
4.100	Indecent or immoral conduct within the Company premises, or acts violating morality or common decency and which proves damaging to the Company's credibility and integrity	T			
4.101	Any activity intended to fraudulently augment KPI scores, violation of client or EmpireOne policy, and consistent poor job performance.	T			
4.102	Commission of any act of dishonesty or fraud, or any act that breaches the trust and confidence conferred by the Company	T			
4.103	Committing other acts of fraud not embraced by the forgoing provisions, regardless of whether such acts cause or tend to cause material, fiscal, financial or monetary damage or loss to the Company	T			
4.104	Committing other acts of deceit or anomaly not embraced by other provisions of this section that cause actual injury, damage, or loss of Company property	T			
4.105	Commission of any act prohibited in the Company Code of Conduct that is not	T			

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	otherwise penalized in this Code or is not subject to a specific penalty under other Company rules and policies				
4.106	Committing other acts or omissions similar or analogous to any of the above enumerations that are not embraced by the foregoing provisions, regardless of whether such acts cause actual damage and/or loss to the interest of the Company	T			
4.107	Accumulation of two (2) final written warnings within a 12-month period constitutes a grave offense punishable by termination, subject to the discretion of the department head	T			

GROUP V PROVISIONS ON TECHNOLOGY, SAFETY, SECURITY, HEALTH AND ORDER

Section	Offense	1st	2nd	3rd	4th
5.1	Failure to wear/ improper usage of Identification Card and/or failure to meet standards of the company's dress code during working hours or whenever required in accordance with Company Policy.	VW	WW	FWW	T
5.2	Refusal to submit to or failure to meet security requirements, or being in the Management opinion, a poor security risk	VW	WW	FWW	T
5.3	Failure to comply with the prescribed dress code	VW	WW	FWW	T
5.4	Committing other acts or omissions similar or analogous to any of the above enumerations which are not embraced by the foregoing provisions regardless of whether such acts cause actual damage and/or loss to the interest of the Company	VW	WW	FWW	T
5.5	Improper/Mishandling of Company equipment/machines and other properties. This refers to lack of care and safety when handling office equipment or machines. Additionally, any cost for repair or replacement of parts or whole unit shall be charged to the employee's account.	VW	WW	FWW	T
5.6	Any employee caught lending ID to another employee, or an employee borrowing an ID or security badge of a co-worker for purposes of entry inside company premises.	VW	WW	FWW	T
5.7	Entering restricted areas without permission or authority, or allowing unauthorized persons to enter restricted areas within the Company premises.	WW	FWW	T	
5.8	Allowing and/or failure to report the presence of unauthorized person(s) entering or loitering within Company premises. May be escalated	WW	FWW	T	

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	and moved to a higher penalty if ingress involved abuse of authority				
5.9	Failure of authorized user to report immediately any damage to or defects of Company machines, equipment, or other facilities	WW	FWW	T	
5.10	Refusing to submit to, preventing, or obstructing reasonable inspection conducted within Company premises by authorized Company personnel	WW	FWW	T	
5.11	Smoking in a place or area other than those authorized or designated smoking areas within Company premises	WW	FWW	T	
5.12	Creating or contributing to the creation of unclean or unsanitary conditions within Company premises or violating or allowing anyone to violate the Company's rules on or basic standards of sanitation	WW	FWW	T	
5.13	Logging off or quitting work hours before your scheduled time off, or going on unauthorized undertime	WW	FWW	T	
5.14	Committing other acts or omissions similar or analogous to any of the above enumerations which are not embraced by the foregoing provisions regardless of whether such acts cause actual damage and/or loss to the interest of the Company	WW	FWW	T	
5.15	Permitting, allowing, or facilitating unauthorized person(s) to use Company supplies, facilities, or equipment regardless of whether such use results in actual loss or damage to the Company	FWW	T		
5.16	Vandalizing, defacing, or altering without authority the appearance, form, or substance of any Company property or part thereof including but not limited to buildings, equipment, furniture and fixtures, advertising materials, or posters and other similar items	FWW	T		
5.17	Failure to give due notification or providing the needed information to Company authorities regarding person(s) responsible for any activities resulting in actual loss or damage to any Company property	FWW	T		
5.18	Unauthorized tampering, transferring or playing with security cameras, smoke or fire alarms, fire exits, first-aid kits, emergency lights and signs, or other emergency equipment of the Company regardless of whether such tampering causes actual damage or loss	FWW	T		
5.19	Unauthorized installation and use of unlicensed or unauthorized software or	FWW	T		

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	copying/reproduction of any licensed software installed in any Company owned or issued computers				
5.20	Unauthorized use of the Internet, chat accounts, or other software programs without prior notice and consent of authorized Company representatives	FWW	T		
5.21	Failure of an employee to report to a Company authority the fact that he/she has contracted a highly contagious and communicable disease/illness that can cause undue exposure and detriment to other Company personnel	FWW	T		
5.22	Failure to report to the Medical officer (e.g. Company physician/nurse) when lawfully and reasonably instructed and ordered to do so by management	FWW	T		
5.23	Failure to submit to or comply with a required medical check-up for verification of a claim of illness	FWW	T		
	Failure or refusal to submit to a drug or alcohol test required by the Company	FWW	T		
5.24	Failure to comply with health, safety, and security requirements and policies of the Company	FWW	T		
5.25	Committing other acts or omissions similar or analogous to any of the above enumerations which are not embraced by the foregoing provisions regardless of whether such acts cause actual damage and/or loss to the interest of the Company	FWW	T		
5.26	Unauthorized use of somebody's login ID to commit violation; unauthorized access to passwords, files, etc.	T			
5.27	Misusing, destroying, or damaging any Company property or the property of a co-employee, official guests, or clients; attempting or committing any act of Sabotage or Vandalism; committing any act causing loss of life, damage to materials or Company property; endangering the efficiency of equipment; tampering with employees' lockers; or entering company premises (including restricted areas) by force, intimidation, or deception	T			
5.28	Writing, carving, etching, painting or posting writings or drawings or other similar acts which tend to deface Company	T			
5.29	Unauthorized withdrawal or attempt to withdraw Company records, equipment, tools, supplies, materials, or other assets in direct violation of security policies	T			

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5.30	Using the Company's information and electronic communications systems in such a way as to create the perception or reality of impropriety, or storing or transmitting data or any electronic media, in whatever form, that is offensive to employees, customers, or other users	T			
5.31	Possessing, concealing, using, selling, or offering firearms, ammunition, explosives, or other deadly weapons on Company premises	T			
5.32	Commission of a crime against the Company or any of its duly authorized representatives	T			
	Conviction of a crime involving moral turpitude	T			
5.33	Making unwelcome advances, requesting any sexual favor, or other verbal, written, visual, or physical conduct of a sexual nature – with or without malice and intent – that creates an intimidating, hostile, or offensive work environment	T			
5.34	Violation of the Company's Computer/Internet Acceptable Use guidelines	T			
5.35	Presentation of a forged, false, altered, or falsified medical certificate to show good health or as justification for unauthorized absence	T			
5.36	Improper and abusive use of company facilities such as toilets, kitchen, canteen and other similar facilities	T			
5.37	Entering Company premises (including restricted areas) or allowing unauthorized persons to enter Company premises with the use of force, intimidation, or deception	T			
5.38	Causing the injury of another due to carelessness, negligence or horseplay	T			
5.39	Unauthorized possession of master keys, duplicate keys or similar devices	T			
5.40	Substitution or attempt to substitute the Company-owned material or equipment	T			
5.41	Unauthorized possession or bringing out of Company property, records, supplies, equipment, etc	T			
5.42	Creating disturbance resulting in the disruption or delay of operations	T			
5.43	Not reporting a serious contagious disease that may endanger other employees	T			
5.44	Committing other acts or omissions similar or analogous to any of the above enumerations which are not embraced by the foregoing provisions regardless of whether such acts cause actual damage and/or loss to the interest of the Company	T			

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MISCELLANEOUS PROVISIONS

These rules are not all inclusive. The Company reserves the right to impose sanctions or dismiss an employee for any other offense or serious infraction of rules not enumerated above. The applicable sanction for such an offense or serious infraction shall be determined by the Company based on the circumstances of each case and the applicable provisions of law.

Management reserves the right to impose a higher or lower penalty depending upon the aggravating or mitigating circumstances of each particular case, taking into consideration performance related issues which form part of the employees' record, and whether the employee is a repeat offender in so far as commission of past offenses are concerned. For those undergoing Training, management reserves the right to impose relatively higher penalties as stipulated in the attendance guidelines made known to the trainees at the start of training, which guidelines shall form part of, and shall be deemed integrated into, this Code.

At the sole discretion of the Company, an offense may be mitigated to a lower penalty by the outstanding performance record of the employee concerned and/or the circumstances of each case.

Imposition of any of the penalties herein prescribed shall be without prejudice to the right of the Company to institute the appropriate civil or criminal action that may be warranted by the circumstances.

In each particular case, substantial evidence that an infraction or violation of any of these rules has been committed is sufficient ground for the imposition of the corresponding penalty.

In cases involving damage to property, the offender, aside from incurring the applicable penalty, shall also be required to pay for the property damaged.

When a single act or omission constitutes two or more infractions or offenses, the higher penalty applicable shall be imposed. Any further violation or infraction of rule during the corresponding period of observation will be penalized one degree higher than that prescribed unless the new violation or infraction requires heavier penalty, in which case such penalty shall be imposed.

Accumulation of two (2) final written warnings and/or suspension within a 12-month period regardless of the nature of offense shall constitute a grave offense punishable with termination, subject to the discretion of the Department Head.

The provisions of the Company Code of Conduct are deemed part and parcel of this Code and any violation thereof shall be punishable under the offenses as classified herein. Management reserves the right to assign the appropriate classification or category as the case may be. At its own initiative, Management may add to, delete from, or revise any portion of this policy as it deems necessary. Such amendments or revisions may come in the form of Memoranda which will be posted in the Bulletin Boards immediately upon issuance. These Memos shall have the effect of superseding certain provisions of this Code which may be in conflict thereto.

It is the command responsibility of the immediate superior to discipline his/her subordinates or staff, to properly implement the rules and to be an example to them. The Appropriate Sanction will be revealed to the employee through a Corrective Action Form. As for all Terminations, the employee will be notified through a Notice of Decision.

Leads, Supervisors and Associate Managers and Managers can issue Coaching Logs up to Final Written Warnings. All Suspensions and Terminations require the observance of substantive and procedural due process and the approval of the Department Manager or Head of the Department, HR Director and/or Site Director.

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An employee will be given the chance to justify his actions through a written explanation before a corresponding sanction is made against him. For cases that would warrant Verbal Warning to Final Written Warning, employee shall be given 5 days from receipt of the notice of the charge to submit an explanation to his immediate superior and/or HRD. For offenses where the applicable penalty is Recommended for Termination of employment, the Company shall establish a committee to conduct admin hearing and deliberate on the case against the employee. An administrative hearing is a venue provided to the employee where he/she will be given the opportunity to present further evidence and explain his/her position to the allegations against him/her.

The management will release its disciplinary judgment not later than a week upon receipt of the employee's written explanation. In cases wherein deliberation has to be extended, the employee concerned will be properly notified.

The Company reserves the right to place an employee on forced leave or preventive suspension, whichever is applicable while his/her case is in the process of deliberation.

Management reserves the right to place an employee under preventive suspension if he or she poses an imminent threat to the life or property of his/her employer or co-employee. During the period of preventive suspension, Management shall give the employee the chance to explain his side through various means, including an Administrative Hearing which will be conducted for the purpose of determining whether or not he is guilty of the charges filed against him. The preventive suspension shall in no case exceed thirty (30) days, and if the employee is found to be innocent of the allegations against him or her, said employee shall be reinstated to his former position with full back wages and seniority rights.

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ACKNOWLEDGEMENT

I, _____, hereby acknowledge receipt of the Code of Discipline on _____ . I hereby attest that I have read and understood the entire document and agree to be bound by the foregoing rules, terms, and conditions of this Code. I further agree that this Code may be amended by company Management from time to time and, subject to prior notice. I likewise pledge compliance with the new rules or policies which may be promulgated henceforth.

Employee's Printed Name over Signature

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DOCUMENT HISTORY

Version	Date	Author (function)	Reviewed by	Approved by	Nature of changes
1.0	October 2024	Jude Michael David, Compliance Manager	Cielo V. Cupta, VP for Operations	Cielo V. Cupta, VP for Operations	First Integrated issue
1.1	March 1, 2026	Apple Mag-usara, HR Generalist Dolley Campugan, HR Generalist	Rhea Alao, Finance & Accounting Director Mark Valencia, Site Director Marc Louise Castanares, Site Manager	Giovanni Yap, Executive Director Anthony Aragon, HR Director	Revision of Code of Conduct and Discipline